सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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F. No.-S/3-MISC-PRO-516/2013 ACC (I) Part 7 **Date: 18.02.2022**

MINUTES OF THE
PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 31.01.2021

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 31.01.2021 at 04:00 P.M. which was chaired by Shri P.V.N. Suresh Babu, Commissioner of Customs (Import). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives of various stakeholders participated in the meeting:

Name & designation	**Organization**
Shri Ranjit Kumar, Commissioner, (Export)	Customs, ACC, Mumbai
Shri M. Rammohan Rao, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Shri Vinay Kumar Arya, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Ms. Mamta Saini, Jt. Commissioner (Import)	Customs, ACC, Mumbai
Shri Sudhakar Pandey, Jt. Commissioner (Export)	Customs, ACC, Mumbai
Shri Nitish Pathode, Deputy Commissioner, EDI & Import Shed	Customs, ACC, Mumbai
Shri Harish D. Hinduja, Asstt. Commissioner (PRO, Import)	Customs, ACC, Mumbai
Name of attendees of stakeholders	**Organization**
Shri Kaushal Thakkar, Shri Ketan Desai, Shri Sanjeev, Shri Rahul V Bhojani, Shri Dushyant Mulani	BCBA
Sh. Bala Ayer	ACAAI
Shri Manoj Singh, Sh. Ashok, Sh. Mayur, Sh. Nasir	MIAL
Shri Nimesh Desai	WISA
Shri Mahesh Kamble	Air India
Shri Rakesh Burman	WCCB
Shri Sanjay Patankar	BAR CC
Shri Harish Zade	Lufthansa Cargo
Shri Ajay Naik	BAR CC
Shri Errol D'souza	Air India
Shri Newton Fernandes	All Nippon AIrlines

At the outset, Commissioner of Customs (Import) welcomed the members of Trade, Customs Broker Associations, Representatives of Airlines/Custodian, and other stakeholders present for the virtual meeting.

Following agenda points were taken up:

A. OPEN POINTS FROM LAST PTFC MEETING HELD ON 29.12.2021

1. HSN Classification changes, 2022:

Shri Dushyant Mulani, BCBA requested the chair to coordinate with ADG, NACIN, Mumbai to arrange a training for all stakeholders in Mumbai Customs regarding the recent changes in HSN.

In this regard, ADC(I) informed the chair that this office has issued Public Notice No. 02/2022 dt. 31.12.2021 and a training in this regard was successfully conducted on 25.01.2022 by PRO alongwith Shri Niraj Pandey, AO and Shri M. R. Dhania, AO. BCBA appreciated the training and requested to close the point.

(Point Closed)

2. 100 % examination being prescribed under FACELESS Assessment

BCBA informed that it is experienced that there are considerable instances where 100 % examination is being prescribed by FAG group. BCBA stated that 100 % examination should only be resorted to in specific cases, otherwise in general, only 5 % random examination be prescribed and requested when 100 % examination orders are prescribed, the TSK counter and the DC should over rule such unwanted examination orders.

In previous meeting, Shri Dushyant Mulani, BCBA had informed the chair and the members regarding the aforesaid point. Commissioner (I) asked if this problem is with ACC, Mumbai. BCBA informed that this problem is occurring where FAG group is involved. Commissioner (I) informed that the matter would be taken up with FAG groups and situation would be assessed thereafter depending upon whether there is any RMS or any other agency instructions in such Bs/E. BCBA informed that they would furnish the list of such cases where such orders are given in AEO Tier-II and III level importers as well.

BCBA informed that this issue is not prevailing now. For earlier instances, they would submit the data within 2 days and as directed by Commissioner (I), they would take the matter with DG (Systems) and requested to close the point as of now.

(Point Closed)

3. Delay in getting BC Challan/Gatepass at MIAL and Air India Counter

BCBA informed that there is tremendous delay in clearance of import consignments, either the system is down or due to lack of staff. Members are also facing difficulty in reporting to MCSC/MIAL in such situation. BCBA requested MIAL to provide details of the person to be contacted from both the Custodians in case of any difficulty.

In previous meeting Mr. Nasir, MIAL had informed the members that Mr. Mukesh Marolia, Deputy Manager and Mr. Gaurav Shabnish can be contacted and furthermore, he informed that for any escalation in matter, Mr. Nasir, himself can be contacted as well.

In previous meeting, Mr. Errol D'Souza, Air India had informed that he is always available for the trade query but Commissioner (I) insisted Air India to issue a notice giving the name of the concerned persons who can be contacted while any issue is faced regarding gate pass and clearance in Air India Shed. Mr. Errol D'Souza, Air India requested for some time so that he can take up the matter with his higher officials.

Mr. Nasir, MIAL informed the members that they had informed the name of the members whom can be contacted regarding any query and agreed to the request of BCBA regarding issuance of a notice in this regard.

Mr. Errol D'Souza, Air India informed the members that they are in the process of the same. Commissioner (I) directed Air India to issue a notice/circular in this regard before next PTFC meeting.

(Point Open)
(Action By: Air India & MIAL)

4. Delay in re-imbursement of TDS amount from Air India.

BCBA submitted that AIR INDIA is delaying the re-imbursement of TDS amount since past 2 years. i.e. 2016-17 & 2017-18. BCBA requested to instruct AIR INDIA Authorities not to delay the re-imbursement amount to members.

In previous meeting, Mr. Errol D'Souza, Air India had informed that they have noted the point and this point has already been brought to the notice of their Finance Team. Commissioner (G) directed Air India to check it up and give a commitment date to the trade. Air India requested for some time.

Mr. Errol D'Souza, Air India informed that they would provide the contact details of their finance team in Delhi who can be contacted by the trade for faster progress in this regard.

(Point Open)
(Action By: Air India)

B. Fresh Agenda Points:

- **Sponsored by BCBA-**

1) Request to shift TSK Office to New Premises inside ACC:

BCBA requested to shift TSK Office new premises inside the ACC which was inaugurated by the Chief Commissioner of Customs last month.

Commissioner (I) informed the members that MIAL is in process of re-structuring of whole ACC and due to shortage of space as of now in main building, possibility of shifting of TSK in main building seems remote. However, Commissioner (I) advised BCBA to search for a suitable place along with ADC(I) and JC(I), in main building for further consideration.

(Point Closed)

2) **GST Amount not reflecting at GST Portal**:

BCBA submitted that various importers are complaining about the IGST paid amount not reflecting at GST PORTAL and requested to take up the matter with ICEGATE to resolve the issue.

DC (EDI) informed the members that the same issue had occurred earlier also and point was raised in PTFC for the month of Oct, 2021. This office had escalated the matter to DG/Systems and Saksham Seva and it was

informed by them that this matter pertains to GST helpdesk and there is no issue in transmission from Customs side.

Commissioner (I) advised BCBA to take the matter with GST Heldesk directly and BCBA agreed to the same.

(Point Closed)

3) Challenges Faced in Perishable Export Clearance:

BCBA submitted that after booking with the Airlines, the Carting of the goods is done followed by Custom Clearance. However, in many cases it is observed that even after proper Booking with the Airlines, the Cargo is not fully uplifted by the Airlines. Due to this, for the shut out cargo, the Shipper is required to take back the cargo which could not be boarded on the flight. Since the Cargo is handed over in full many times it happens that the Airlines file EGM as per the booking received & not as per the goods loaded on the carrier. Now since the EGM is filed the Exporter cannot cancel the SB, nor can they complete the Back-to-Town formalities. Unlike general Cargo which can be uplifted in the next flight, the same is not feasible in case of Perishable Cargo in most cases and more so if the EGM is also filed for the shut-out cargo. i.e. EGM filed as per the details mentioned in SB & not as per the actual cargo which is loaded on the flight. The Exporter also faces issues in such cases with regards to the remittance that is received in such SBs.

For Perishable Cargo, TIME is very critical. Hence the Back-to-Town Practice may be reviewed and should be granted on Top-Priority. Also, if possible, the AIRLINES to be instructed to file the EGM only for those packages which are loaded by them and not as per the details mentioned in the SB.

Commissioner (I) asked BCBA if they had taken the matter with Commissioner(X). BCBA informed that they had discussed with DC(Shed).

JC(X) informed the members that this matter has come to their notice for the first time and this requires some scrutiny and discussion with airlines as well as what problems are being faced by them.

BCBA was advised to take the matter with export commissionerate and if required, may take up again in PTFC to which BCBA agreed.

(Point Closed)

4) AEO Application to be Processed in time bound manner and the details of the Application received and Processed to be displayed on the ACC Portal:

BCBA submitted that as per feedback received from the trade regarding the mechanism to check the Status of their application is not in place. As per the current practice all the applications are done online, however the status of the same is unknown. Hence, it is requested that the status of the application be intimated by E-mails to the applicant or on the ACC website along with the timeline by which it is expected to be completed. Also, it is observed that the successful recommendation sent to DIC Delhi having any SCN which are not listed as per Para 3.2.1 are also getting rejected. This defeats the very crux on which the AEO programme is based. Also the Zone

through which such applications are thoroughly examined before approving the recommendation has no say in the matter for any review.

JC(X) informed the members that they had gone through the agenda points. He further added that they may publish the list of AEO applications alongwith status with approval of Commissioner (X) but as far as expected timeline is concerned, sometimes, there is deficiency in documents and delay is on the part of IEC holder, and hence, expected date can't be mentioned unless it is mandatory by Board. He further added that rejection of AEO applications is done only after proper scrutiny laid down in Board's Circulars/Notifications, being a policy matter.

BCBA was advised to take the matter with Commissioner(X) for further solution to which BCBA agreed.

(Point Closed)

5) Delay in clearance at AIRINDIA Import shed due to shortage of stationery

BCBA submitted that members have complained that Print Cartridges are not available for continuous printing of the gate passes. Air India authority is not providing print cartridges, in some situation their staff bears the expenses and provides the print cartridges. BCBA requested to take up this matter with higher authority to avoid delay in clearance.

Mr. Errol D'Souza, Air India informed that this issue occurred 15 days back and as of now there is no problem in printing facilities.

(Point Closed)

- **<u>Sponsored by ACAAI-</u>**

6) Change in assessment procedure of Bills of Entry filed by First Time Importers – Implementation of Trade Facilitation Measures

ACAAI submitted that as per para no. 6 of PN No. 06/2016-17, for first time registration, they need to go to concerned assessment group but the stakeholders don't know about the group as the goods are yet to be imported and the assessment officers are not willing to accept the documents submitted by them. ACCAI requested that they may be allowed to register and assessment officer should not insist them for BE.

Commissioner (I) advised ACAAI to meet ADC(I) and JC(I) and discuss the matter to which ACAAI agreed.

(Point Closed)

The meeting ended with a vote of thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

18/02/2022

(M. Rammohan Rao)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
2. All Addl./Jt. Commissioner of Customs, Import / Export / General, ACC.
3. All members of PTFC meeting including BCBA & ACAAI. (via E-mail)
4. DC/EDI for uploading on ACC website (via E-mail)
5. PGAs, ACC, Mumbai (via E-mail)
6. Office copy.